

1 ENGROSSED HOUSE
2 BILL NO. 3472

By: Kerbs of the House

and

Stanley of the Senate

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7 An Act relating to environment and natural resources;
8 amending 27A O.S. 2021, Section 2-11-401.1, which
9 relates to definitions; modifying definition; and
10 providing an effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-11-401.1,
14 is amended to read as follows:

15 Section 2-11-401.1. As used in the Oklahoma Used Tire Recycling
16 Act:

17 1. "ASTM" means the American Society for Testing and Materials;

18 2. "Automobile" means every motor vehicle of the type
19 constructed and used for the transportation of ten persons or less,
20 including the driver, or used for the transportation of property.
21 Provided, however, that the automobile's gross vehicle weight rating
22 does not exceed sixteen thousand (16,000) pounds;

23 3. "Automotive dismantler and parts recycler" means the same as
24 defined in Section 591.2 of Title 47 of the Oklahoma Statutes;

1 4. "Commission" means the Oklahoma Tax Commission;

2 5. "Department" means the Department of Environmental Quality;

3 6. "End use" means a Department-approved ultimate economic use
4 for a used tire or tire-derived product, including granulated
5 rubber, ground rubber, tire chips, tire-derived aggregate, tire-
6 derived fuel and tire shreds;

7 7. "Fund" means the Used Tire Recycling Indemnity Fund;

8 8. "Granulated rubber" means particulate rubber composed of
9 mainly nonspherical particles that span a broad range of maximum
10 particle dimensions, from below four hundred twenty-five thousandths
11 (0.425) of a millimeter (40 mesh) to twelve (12) millimeters (0.47
12 inches) pursuant to current ASTM standards;

13 9. "Ground rubber" means particulate rubber composed of mainly
14 nonspherical particles that span a broad range of maximum particle
15 dimensions, from below four hundred twenty-five thousandths (0.425)
16 of a millimeter (40 mesh) to two (2) millimeters (0.08 inches)
17 pursuant to current ASTM standards;

18 10. "Motorcycle" means a motor vehicle of a type defined in
19 Section 1-135 of Title 47 of the Oklahoma Statutes;

20 11. "Motor-driven cycle" means a motor vehicle of a type
21 defined in Section 1-136 of Title 47 of the Oklahoma Statutes;

22 12. "Motor vehicle" means the same as defined in Section 1-134
23 of Title 47 of the Oklahoma Statutes;

1 13. "Priority cleanup list" means a list, created and
2 maintained by the Department, of:

3 a. unpermitted dumps which did not exist when the owner
4 took possession of the property where the tires are
5 located, and were created without the consent of or
6 benefit to the owner of the property, and

7 b. such other tire dumps designated by the Department
8 pursuant to Section 2-11-401.6 of this title;

9 14. "Reusable tire" means a tire that has been previously used
10 on a vehicle, not currently mounted on a vehicle, but can be legally
11 placed into service for vehicle use in Oklahoma;

12 15. "Semitrailer" means the same as defined in Section 1-162 of
13 Title 47 of the Oklahoma Statutes;

14 16. "Tire" means any solid or air-filled covering for vehicle
15 wheels;

16 17. "Tire chips" means pieces of scrap tires that have a basic
17 geometrical shape and are generally between twelve (12) millimeters
18 (0.47 inches) and fifty (50) millimeters (1.97 inches) in size and
19 have most of the wire removed pursuant to current ASTM standards;

20 18. "Tire dealer" means any person engaged in the business of
21 selling new and used tires to final consumers, not for resale;

22 19. "Tire-derived aggregate" means pieces of scrap tires that
23 have a basic geometrical shape and are generally between twelve (12)
24 millimeters (0.47 inches) and three hundred five (305) millimeters

(12.01 inches) in size and are intended for use in civil engineering applications pursuant to ASTM standards;

20. "Tire-derived fuel" means whole tires or processed tires that can be used for energy or fuel recovery pursuant to current ASTM standards;

21. "Tire-derived fuel facility" or "TDF facility" means a facility that uses processed tires or whole used tires for energy or fuel recovery;

22. "Tire-derived product" means matter that:

- a. is derived from a process that uses whole tires as a feedstock, including chipping for the purpose of fuel recovery, granulating and grinding,
- b. adheres to established engineering or other appropriate specifications or to established product end-user specifications or customer conditions of acceptance,
- c. has a demonstrated benefit associated with the end use, and
- d. can be used as a substitute for or in conjunction with a commercial product or raw material;

23. "Tire shreds" means pieces of scrap tires that have a basic geometrical shape and are generally between fifty (50) millimeters (1.97 inches) and three hundred five (305) millimeters (12.01 inches) in size pursuant to current ASTM standards;

1 24. "Trailer" means the same as defined in Section 1-180 of
2 Title 47 of the Oklahoma Statutes;

3 25. "Used tire" means an unprocessed whole tire or tire part
4 that can no longer be used for its originally intended purpose but
5 can be beneficially reused as approved by the Department. Any used
6 tire collected in accordance with the requirements of the Oklahoma
7 Used Tire Recycling Act is not considered to be discarded. A tire
8 that can be used, reused or legally modified to be reused for its
9 original intended purpose shall not be a used tire;

10 26. "Used tire processing" means altering the form of whole
11 used tires by shredding, chipping or other method approved by the
12 Department, except baling ~~and pyrolysis~~. For purposes of this act
13 only, tire pyrolysis shall, for a five-year period ending on July 1,
14 2031, meet the definition of used tire processing until July 1,
15 2031, but not thereafter. Any tire pyrolysis facility shall not be
16 considered an advanced recycling facility but rather a used tire
17 recycling facility and shall be subject to all applicable statutes
18 and rules for such facilities;

19 27. "Used tire recycling facility" means any place which is
20 permitted as a solid waste disposal site, in accordance with the
21 Oklahoma Solid Waste Management Act, at which used tires are
22 processed; and

23 28. "Vehicle" means the same as defined in Section 1-186 of
24 Title 47 of the Oklahoma Statutes.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate